

Smt. Vinuta W/O Nitin Sambrekar vs Nitin S/O Satish Sambrekar on 11 July, 2018

Bench: L.Narayana Swamy, B.M.Shyam Prasad

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IN THE HIGH COURT OF KARNATAKA,
DHARWAD BENCH

DATED THIS THE 11TH DAY OF JULY 2018

PRESENT

THE HON'BLE MR. JUSTICE L. NARAYANA SWAMY

AND

THE HON'BLE MR. JUSTICE B. M. SHYAM PRASAD

M.F.A.NO.103838/2017 (FC)

C/W

M.F.A.NO.103839/2017 (FC)

M.F.A.NO.103838/2017:

BETWEEN:

SMT. VINUTA W/O NITIN SAMBREKAR

AGE: 28 YEARS

OCC. SERVICE

NOW RESIDING AT R.SY.NO.40

SWAPNAPURTY APARTMENTS

2ND FLOOR, NEAR JAI BALLALESHWAR

GANESH MANDIR

VADAGAON SHERIM PUNE-410014

MAHARASTRA PERMANENT ADDRESS

"SIDDHI APARTMENTS"

FLAT NOS.103/104, 6TH CROSS

BHAGYA NAGAR

BELAGAVI-590006.

... APPELLANT

(BY SRI. PRASHANT S HOSMANI, ADV.)

AND:

NITIN S/O SATISH SAMBREKAR

AGE: 34 YEARS

OCC. MARKETING MANAGER INDUS BANK

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R/O: "SOUL APARTMENTS"

A WING 501, SY.NO.51
MAMATA SOCIETY
BEHIND BOLLYWOOD THEATER, WADGAON
SHERI BY-PASS, OLD MUNDHWAE ROAD
PUNE-411014, MAHARASTRA. ... RESPONDENT

(BY SRI. B R KAPPAHI, ADV)

THIS MFA IS FILED U/S.19(1) OF THE FAMILY COURT ACT
1984, AGAINST THE JUDGEMENT AND DECREE DATED:14.08.2017,
PASSED IN MATRIMONIAL CASE NO.438/2015 ON THE FILE OF THE
JUDGE, FAMILY COURT, BELAGAVI, DISMISSING THE PETITION
FILED U/SEC. 13(1)(i-a) OF THE HINDU MARRIAGE ACT.

M.F.A.NO.103839/2017:

BETWEEN:

SMT. VINUTA W/O. NITIN SAMBREKAR
AGE:28 YEARS, OCC:SERVICE,
NOW RESIDING AT:R.SY NO.40,
SWAPNAPURTY APARTMENTS,
2ND FLOOR,
NEAR JAI BALLALESHWAR,
GANESH MANDIR,
VADGAON SHERIM PUNE-410014.
MAHARASHTRA.
PERMANENT ADDRESS:"SIDDHI APARTMENTS",
FLAT NO.103/104, 56TH CROSS,
BHAGYA NAGAR,
BELAGAVI-590006. ... APPELLANT

(BY SRI. PRASHANT S HOSMANI, ADV.)

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AND:

NITIN S/O SATISH SAMBREKAR
AGE:34 YEARS,
OCC:MARKETING MANAGER
INDUS BANK,
R/O. "SOUL APARTMENTS",
A WING 501, SY.NO.51,
MAMATA SOCIETY,
BEHIND BOLLYWOOD THEATRE,
WADAGAON, SHERI BY-PASS,
OLD MUNDHWA ROAD,
PUNE-411014, MAHARASHTRA. ... RESPONDENT

(BY SRI.B.R.KAPPAHI, ADV.)

MFA FILED U/S.19(1) OF THE FAMILY COURT ACT 1984,
AGAINST THE JUDGEMENT AND DECREE DATED:14.08.2017,
PASSED IN MATRIMONIAL CASE NO.48/2016 ON THE FILE OF THE
JUDGE, FAMILY COURT, BELAGAVI, DISMISSING THE PETITION
FILED U/SEC. 13(1)(1-a) OF THE HINDU MARRIAGE ACT.

THESE APPEALS COMING ON FOR ADMISSION THIS DAY,
B.M. SHYAM PRASAD J., DELIVERED THE FOLLOWING:

JUDGMENT

The appellant and respondent have filed an application under Section 13-B of the Hindu Marriage Act, 1955 seeking dissolution of their marriage solemnized on 12/12/2013 at City Hall, Bhagya Nagar, Belagavi, by mutual consent, and therefore, the appeal though listed for admission, is taken up for final disposal.

2. The appellant/ wife filed the petition in M.C.No.438/2015 for divorce, and the respondent/ husband filed the petition in MC No.48/2016 for restitution of conjugal rights. The Family Court by the impugned judgment dismissed the petition in M.C.No.438/2015 by the wife for divorce and allowed the petition in M.C.No.48/2016 for restitution of conjugal rights; the present appeal is filed by the appellant/ wife impugning dismissal of the petition for divorce.

3. The appellant and the respondent have filed an application under Section 13-B of the Hindu Marriage Act in M.F.A. No.103838/2017 inter alia stating that during the pendency of this appeal, and because of the prolonged litigation, at the intervention of the well-wishers they have agreed to seek dissolution of the marriage by mutual consent as provided under Section 13-B of the Hindu Marriage Act, 1955, and given the nature of dispute pending between them, they have also asked for the waiver of the statutory period envisaged under Section 13-B of the Hindu Marriage Act, 1955. The terms of settlement on which they seek divorce by mutual consent, and as mentioned in the said application, are as follows:-

"1. The marriage of the petitioner and the respondent was solemnized on 12/12/2013 at City Hall Bhagya Nagar Belagavi according to Hindu rites and customs. No issues are born to the parties. Both the appellant and respondent are educated and gainfully employed.

2. Due to irreconcilable differences that arose between the parties, both the appellant and respondent started living separately. Efforts to solve the differences between the parties were made by elders and families from both the sides, but all efforts for reconciliation failed and the parties continued to live separately. During April 2015 both the parties along with their elders and well-wishers decided to mutually end the marriage and talks were also held to chalk out the separation plan, but the same could not materialize and the appellant and respondent started living separately from 19/11/2015. Even till this day both the parties have neither talked together nor stayed together.

3. The appellant filed MC No.438/2015 before the Family Court Belagavi on 15/12/2015 for divorce under Section 13(1)(i-a) of the Hindu Marriage Act, 1955. The respondent appeared and contested the said case and also filed MC No.48/2016 under Section 9 of the Hindu Marriage Act, 1955 both the cases were clubbed and the proceedings were conducted jointly. During the hearing of the said cases, by order of the Family court reconciliation talks were held between the parties which eventually failed. On 14/8/2017 the Family court, Blagavi dismissed MC No.438/2015 filed by the appellant for divorce and allowed Mc No.48/2016 filed by the respondent under Section 9 of the Hindu Marriage Act, 1955.]

4. Aggrieved by the common order dated 14/8/2017 the appellant filed MFA No.103838/2017 challenging the order passed in MC.No.438/2015 and MFA No.103839/2017 challenging the order passed in MC No.48/2016. After issuance of notice in MFA No.103838/2017 the respondent has appeared through his counsel and after holding talks outside the court the parties have once again decided to mutually separate and end the marriage amicably and decided to file the present application with free will and consent.

5. The parties have been living separately form more than three years from today and during this period they have never stayed together.

6. All efforts to reconciliation with the help of elders and well wishers have failed even the reconciliation talks at the instance of Family court Belagavi also failed. They have reached a stage in their relationship where they are not on talking terms. Since forcible perpetuation of status of matrimony between unwilling partners do not serve any purpose, in the interest of the appellant and respondent it is decided among the parties to led their lives separately by mutually ending the marriage.

7. No other cases are pending between the parties. The appellant is not having any monetary claims against the respondent. It is also agreed that both the parties will not stake a claim in each other's immovable or movable properties either at present or in the future. Both the parties have also returned the gold, silver and other valuables exchanged during and after the marriage. Therefore it is most humbly prayed that the this Hon'ble Court may be pleased to grant a decree of divorce by mutual consent and dissolve the marriage solemnized between the appellant and respondent on 12/12/2013 at city Hall Bhagya Nagar, Belagavi by waiving of the waiting period of six months in the interest of justice and equity."

4. The appellant/ wife, who has filed the appeal in MFA No. 103839/2017 challenging the judgment of the Family Court allowing the petition in MC No.48/2016 filed by the respondent under Section 9 of the Hindu Marriage Act, 1955, has filed a separate Memo seeking dismissal of the appeal It is submitted by the learned Counsel for both the parties that the judgment and decree dated 14.8.2017 in MC No.48/2016 filed by the respondent under Section 9 of the Hindu Marriage Act, 1955 be set-aside and the petition in MC No.48/2016 be dismissed as withdrawn.

5. The appellant and the respondent, who are present in the Court are identified by their respective counsel and appellant and respondent admit the terms as mentioned in the application under Section 13 -B of the Hindu Marriage Act, 1955 and also seek for orders in MFA No. 103839/2017 as requested by their learned Counsel.

In view of the foregoing, and the Judgment and Decree in both MC No.438/2015 and M.C. No.48/2016 are set-aside. The petition in MC No.48/2016 filed by the

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respondent under Section 9 of the Hindu Marriage Act, 1955 is dismissed and the application under section 13-B of the Hindu Marriage Act, 1955 is accepted waiving the statutory period of six months, and the marriage solemnized between the appellant and the respondent on 12/12/2013 is dissolved by mutual consent on terms that are extracted in the order.

Office to draw decree accordingly.

Sd/-

JUDGE Sd/-

JUDGE Vmb